Rajesh And Ors. vs State And Anr. on 17 January, 2008

Equivalent citations: I(2008)DMC442

Author: Shiv Narayan Dhingra

Bench: Shiv Narayan Dhingra

JUDGMENT

Shiv Narayan Dhingra, J.

1. By the instant petition under Article 226/227 of the Constitution of India read with Section 482 Cr.P.C., the petitioners sought quashing of the FIR No. 30 of 2007 under Section 498A/406/34 IPC read with Section 3/4 of Dowry Prohibition Act registered with Police Station Bhajanpura, Delhi and quashing of another FIR bearing No. 659 of 2006 under Sections 323/506/34 IPC registered with Police Station Anand Vihar, Delhi.

2. The above two FIRs were a result of matrimonial discord. After registration of these FIRs, a compromise was arrived at between parties before the Court of Ms. Reena Singh Nag, ASJ, Karkardooma Courts, Delhi and this compromise was signed by both parties. It reads as under:

> COMPROMISE DEED THIS COMPROMISE DEED is executed on 19th day of January, 2007 at Delhi between:
>
> Sh. Rajesh s/o Sh. Mukut Lal r/o V.P.O. Jawli, P.S. Loni, Distt.
>
> Ghaziabad, U.P. (hereinafter referred to as FIRST PARTY/HUSBAND).
>
> AND Smt. Neelam w/o Sh. Rajesh D/o Sh. Yudhvir Singh r/o A-42, Village North Ghonda, Delhi (hereinafter referred to as SECOND PARTY/WIFE).
>
> That both the parties had got married on 02.03.2006 at Delhi according to Hindu Rites and Customs.
>
> IN WITNESSES WHEREOF both the parties have entered into the compromise on the following terms and conditions:
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> 1. That with the intervention of the relatives and friends both the parties have amicably resolved their matrimonial differences and it has been amicably settled that both the parties shall get their marriage dissolved from a competent court of law as it

is not possible for both the parties to reunite and live together.

2. That the First Party will pay a sum of Rs. 13,50,000/- (Rupees Thirteen Lacs Fifty Thousand Only) to the Second party against her entire claims as full and final settlement and the said sum of Rs. 13,50,000/- (Rupees Thirteen Lacs Fifty Thousand Only) includes past, present and future maintenance, divorce by mutual consent, permanent alimony, dowry/Istridhan articles including jewellery, quashing of FIR No. 30/2007 under Section 498A/406/34 IPC r/w Section 3/4 of Dowry Prohibition Act of P.S. Bhajanpura, Delhi, quashing of FIR No. 659/2006 under Section 323/506/34 IPC of P.S. Anand Vihar, Delhi, withdrawal of complaint case titled as Neelam v. Rajesh and Ors. pending adjudication in the Court of Shri S.K. Malhotra, MM, Karkardooma, Delhi fixed for 26.2.2007 and both the parties further agrees to withdraw every complaint/cases filed by them against each other in any court of law and hereinafter there shall be no civil or criminal litigation between the parties relating to the marriage.

3. That it has been mutually agreed that a sum of Rs. 13,50,000/- (Rupees Thirteen Lacs Fifty Thousand Only) shall be disbursed to the Second Party as under:

(a) Rs. 5,00,000 (Rupees Five Lacs Only) before the Ld. Sessions Judge, Karkardooma at the time of grant of bail to the First Party and his family members in case FIR No. 30/2007 of P.S. Bhajanpura, Delhi under Section 498A/406/34 IPC read with Section 3/4 of Dowry Prohibition Act.

(b) Rs. 4,00,000/- (Rupees Four Lacs Only) before the Hon'ble Court at the time of recording of the Joint statement of Second Motion of Divorce by mutual consent and the said joint petitions of divorce by mutual consent shall be filed by both the parties in the month of March, 2007 or earliest possible.

(c) Rs. 4,50,000/- (Rupees Four Lacs Fifty Thousand only) before the Hon'ble High Court of Delhi at the time of quashing of FIR No. 30/2007, P.S. Bhajanpura, Delhi under Section 498A/406/34 IPC r/w Section 3/4 of Dowry Prohibition Act and FIR No. 659 of 2006 of P.S. Anand Vihar, Delhi under Section 323/506/34 IPC which have been registered on the complaint of the brother of the Second party.

4. That it is mutually settled between the parties that the entire dowry/Istridhan articles shall be retained by the First party and the said sum of Rs. 13,50,000/- (Rupees Thirteen Lacs Fifty Thousand Only) includes the value of the said articles also which is being paid by the First party to the Second party.

5. That it is further agreed that the Second party shall cooperate, sign and hand over the relevant documents for transfer of the Indigo TDI SX Car bearing Registration No. DL-4C-U-7037 in favor of the First party at the time of final payment but before one month the signatures of the owner of the aforesaid vehicle shall be got verified from the Transport Authority for the purpose of verification of

signature. However, relevant sale documents will be given finally at the time of final payment and in case any other relevant document is required by the Transport Authority the Second party undertakes to cooperate and to do the needful at the time of final payment.

6. That it is further agreed between the parties that the said compromise arrived between the parties is binding and enforceable.

7. That in case of non-fulfillment of the above mentioned compromise the Second party shall be at liberty to initiate legal proceedings against First party and his family members and the present compromise deed shall stand null and void and in case the Second party do not cooperate and perform the above mentioned acts, the First Party shall be entitled for refund of the amount received by the Second party as mentioned above.

8. That the present compromise have been arrived and signed by both the parties without any threat, force, fraud, coercion, pressure or undue influence from any side and at their free will without any collusion.

IN WITNESSES WHEREOF both the parties have signed on this Compromise Deed on the day, month and year mentioned above.

Witnesses:

SD/-

1. (FIRST PARTY/HUSBAND) SD/-

2. (SECOND PARTY/WIFE)?

3. It is submitted by the petitioners that in terms of the compromise a sum of Rs. 5 lac was paid to the respondent No. 2 at the time of grant of bail and another sum of Rs. 4 lac was paid to respondent No. 2 before the Court of Shri Deepak Jagotra, Additional District Judge at the time of making joint statement for grant of divorce by mutual consent in petition No. 127 of 2007 and remaining amount of Rs. 4.5 lac was to be paid by the petitioner to respondent No. 2 before this Court at the time of quashing of the aforesaid two FIRs. The respondent No. 2 in terms of the compromise was to sign the transfer documents of car bearing registration number DL4CU7037 in favor of petitioner No. 2 before this Court. Respondent No. 2, give her specimen signatures on the documents/letters regarding transfer of vehicle before the Court of Shri Deepak Jagrotia, for verification but deliberately put her signatures in Hindi while her signatures before Transport Authorities were in English. When the petitioner No. 1 went for verification of signatures, he found that the signatures were not tallying because respondent No. 2 signed the documents in Hindi while her signatures were actually in English. Respondent No. 2 was also to withdraw her complaint filed against petitioner No. 1 titled as Neelam v. Rajesh pending

adjudication before the Court of Shri S.K. Malhotra, Metropolitan Magistrate. The respondent No. 2 neither withdrew her complaint nor put her correct signature on sale/transfer documents qua vehicle. When she was approached by the petitioner to sign the quashing petition and receive balance amount before this Court and cooperate in quashing of the above noted two FIRs, she refused to do so. The petitioners, therefore, approached this Court for quashing of the above-mentioned FIRs.

4. Notice of the instant petition was served upon the respondent No. 2. It is contended by respondent No. 2 in the written submissions filed before this Court that she has no objection insofar as quashing of FIR bearing No. 30 of 2007, Police Station Bhajanpura is concerned, however, on account of the acts of the petitioners, she considered that the petitioners were not entitled for any relief. She alleged that in fact the petitioners failed to honour the compromise and the spirit behind the compromise. The FIRs were to be quashed subject to the condition that petitioners will pay a sum of Rs. 13,50,000/- , out of which, Rs. 9 lac has been received by respondent No. 2, the remaining amount of Rs. 4.5 lac has not been paid by the petitioners to respondent No. 2. The respondent No. 2 served a legal notice dated 13th April, 2007, reminding the petitioners about failure on their part to pay the balance amount. However, the petitioners failed to respond to this notice, instead the petitioners approached the Court of Shri S.C. Malik, Additional Sessions Judge for appropriate directions to respondent No. 2 to give her signatures on the transfer form. The respondent No. 2 told the Court of Shri S.C. Malik that she had already given her signatures on the transfer form.

5. It is not disputed by respondent No. 2 that she signed the transfer documents in Hindi and her signatures before the Transport Authorities for the registration of vehicle were in English. However, she took the stand that had the petitioners any grievance in this regard, they would have responded to the legal notice of by respondent No. 2 to the petitioners and would have paid the remaining amount of Rs. 4.5 lac in terms of the compromise to respondent No. 2. It is stated that the petitioners No. 1, 2 and 3 are the police officials and they were misusing their position and they know all tricks of the game. She reiterated that it were the petitioners who were not cooperating for quashing of the above FIRs.

6. In this Court, an offer was made to respondent No. 2 that she should receive the balance amount of Rs. 4.5 lac in the Court, she should cooperate in quashing of above FIRs, on which respondent No. 2 contended that since the amount had not been paid for long time and the vehicle has also been used by the petitioners, she was entitled to an additional amount by way of interest over this amount. She also took the stand that there was no compromise regarding quashing of other FIR and she shall not cooperate in quashing of FIR No. 659 of 2006.

7. Undisputedly a statement of petitioner No. 1 and respondent No. 2 was recorded before the Court of ADJ on 3.2.2007 at the time of granting divorce by mutual consent. The statement made by the petitioner No. 1 and respondent No. 2 reads as under:

We have already settled all our claims and disputes against each other, qua this marriage, with regard to maintenance, past, present and future, permanent alimony, dowry, stridhan, in full and final.

We have settled the matter for an amount of Rs. 13,50,000/- (Rs. Thirteen lacs and fifty thousand only) towards full and final settlement, out of which an amount of Rs. 5,00,000/- (Rupees Five Lacs Only) has already been received by petitioner No. 2 and out of the remaining amount an amount of Rs. 4,00,000/- (Rs. Four Lacs Only) is handed over to petitioner No. 2 today, by way of Demand Draft, bearing No. 242055, dated 03.02.2007, drawn on Indina Overseas Bank, and the balance amount of Rs. 4,50,000/- (Rupees Four Lacs and Fifty Thousand Only) shall be handed over to petitioner No. 2 at the time of quashing of FIR No. 30/07, Under Section 498A/406/34 IPC and 3/4 Dowry Prohibition Act, PS Bhajanpura and FIR No. 659/06, Under Section 323, 506, 34 IPC PS Anand Vihar, before Hon'ble High Court.

It has been further agreed between us that petitioner No. 2 shall cooperate in the proceedings of getting the above mentioned two FIRs quashed. It has been further agreed between us that petitioner No. 2 shall withdraw her complaint case, pending in the Court of Shri S.K. Malhotra, Ld. MM, Delhi. It has been further agreed between us that petitioner No. 2 shall execute all the necessary documents for the transfer of vehicle No. DL 4CU 7037. Petitioner No. 2 has handed over all the documents relating to the transfer of the above said vehicle to petitioner No. 1, however, it is made clear that petitioner No. 2 has executed all the documents for the purposes of verification, her signatures, etc. in the concerned authority.

It has been further agreed between us that the above said vehicle shall be completely transferred in the name of petitioner No. 1 only after the full and final payment of Rs. 13,50,000/- (Rs. Thirteen Lacs and Fifty Thousand only) shall be made by the petitioner No. 1 and till the complete transfer, all right, title or interest shall remain with petitioner No. 2.

It has been further agreed between us that as the vehicle is in the possession of petitioner No. 1, since 02.03.2006, he shall remain bound by all the consequences, relating to the vehicle, including insurance, court cases. Etc. We have also agreed that we shall not file any sort of litigation in future relating to this marriage.

8. A perusal of above statement coupled with the compromise mentioned above would show that it was categorically agreed between petitioners No. 1 and respondent No. 2 that on receipt of total amount of Rs. 13.5 lac, the above two FIRs, lodged at the

behest of respondent No. 2 and her relatives shall be got quashed and the respondent No. 2 shall cooperate in quashing of these two FIRs. The amount of Rs. 4.5 lac was to be handed over to the respondent No. 2 at the time of quashing of the above two FIRs. It was also agreed between parties that respondent No. 2 shall execute all requisite documents for transfer of the vehicle (car) and she will withdraw her complaint pending adjudication in the Court of Shri S.K. Malhotra, Metropolitan Magistrate and that she will not initiate any sort of litigations in future qua this marriage and that the vehicle shall remain in possession of petitioner No. 1 and he would be responsible for all consequences pertaining to the vehicle like insurance, court proceedings etc. The petitioner No. 1 has denied having received any notice from respondent No. 2 and stated that this writ petition for quashing was filed by the petitioner in July, 2007 after the statement of parties before the Court of learned ASJ was recorded in February, 2007.? The petitioner was to arrange the balance amount of Rs. 4.5 lac and after arranging the same, had approached respondent No. 2 for cooperating in quashing the above referred two FIRs but respondent No. 2 declined to cooperate. It is submitted that respondent No. 3 who is father of R-2 and an advocate had all along been instrumental for all the troubles and that is the reason why respondent No. 2 did not cooperate.

9. Respondent No. 2 made a statement before the court on 3.2.2007, after entering into compromise, with the petitioners, that she would honour the compromise. She has to adhere to the statement made by her before the Court. She had already received a substantial amount of Rs. 9 lac, out of the total amount of Rs. 13.5 lac, as agreed between the parties. ?She had only to receive the balance amount of Rs. 4.5 lac. On receipt of the same, she had to agree for quashing of the above two FIRs and for withdrawal of the complaint filed by her before the Court of Shri S.K. Malhotra, MM, Delhi. The balance amount of Rs. 4.5 lac was to be paid to her by the petitioners in the Court at the time of quashing of FIRs. Respondent No. 2 cannot be allowed to make mockery of the Court proceedings, nor the statement made by her in the Court can be considered a trash. Respondent No. 2 now cannot be allowed to back out from the compromise or to wriggle out of the statement made before the court. If it is allowed, there shall be no sanctity to the Court proceedings and the statements made by the witness and the parties before the Court.

10. In view of above discussion, I allow this writ petition. The above two FIRs and the criminal complaint pending before the Court of Shri S.K. Malhotra, MM, Delhi are hereby quashed. The petitioners are directed to deposit the balance amount of Rs. 4.5 lac by way of a pay order/Bank Draft in this Court within three days in the name of respondent No. 2. Respondent No. 2 will be at liberty to withdraw this amount from this Court immediately thereafter.

11. With above directions, this writ petition stands allowed.